



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, AICP – Planner II
Subject: A Resolution Approving the 15th Street Corridor Urban Renewal Plan and the 15th Street Corridor Urban Renewal Project Pursuant to Wyoming Statute § 15-9-110.
Date: May 18, 2022

Background:

The item for consideration is a **Resolution**.

The proposed Governing Body review schedule is as follows:

- Introduction and Public Hearing 5/23/2022
- Public Services Committee 6/07/2022
- Second and Final Reading 6/13/2022

Summary:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. Included within the Urban Renewal Powers is the ability to make Urban Renewal Plans and Projects. The attached plan serves to establish the 15th Street Corridor Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted a Resolution on May 5, 2022 declaring the area as blight pursuant to § 15-9-107, thus making the Corridor eligible for an Urban Renewal Plan and Project. The 15th Street Corridor Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing (including tax increment financing), the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan.

The Urban Renewal Authority Board heard the plan at their May 12, 2022 meeting and recommended approval by a vote of 4-0. The item was then heard at the May 16, 2022 Planning Commission meeting and was recommended approval by a vote of 3-0. The Planning Commission staff report is attached and unchanged.

Attachments:

1. Resolution
2. Planning Commission Staff Report
3. The 15th Street Corridor Urban Renewal Plan

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION APPROVING THE 15th STREET CORRIDOR URBAN RENEWAL PLAN AND THE 15th STREET CORRIDOR URBAN RENEWAL PROJECT PURSUANT TO WYOMING STATUTE § 15-9-110.”

WHEREAS, pursuant to Resolution No. 6156, Resolution No. 6234, and under Wyoming Statute § 15-9-101, *et seq.*, the City of Cheyenne found certain areas to be appropriate for an urban renewal project, including the “15th Street Corridor Study Area” as described in Resolution No. 6156 and Resolution No. 6234; and

WHEREAS, Resolution No. 6156 was adopted after hearings on June 14, 2021 and June 28, 2021 and was found to be in conformity with Wyoming Statute § 15-9-106 and appropriate for an urban renewal project pursuant to Wyoming Statute § 15-9-107; and

WHEREAS, Resolution No. 6234 was adopted after hearings on April 25, 2022 and May 9, 2022 and was found to be in conformity and appropriate for an urban renewal project pursuant to Wyoming Statute § 15-9-107; and

WHEREAS, on May 12, 2022, the City Urban Renewal Authority Board: (i) reviewed the 15th Street Corridor Urban Renewal Plan for the 15th Street Corridor Urban Renewal Project, (ii) found the 15th Street Corridor Urban Renewal Plan to be in conformity with PlanCheyenne, and (iii) recommended that the Planning Commission recommend approval of the 15th Street Corridor Urban Renewal Plan for the 15th Street Corridor Urban Renewal Project in the form presented to the Urban Renewal Authority Board; and

WHEREAS, Wyoming Statute § 15-9-108 requires that before approving an urban renewal project, the Governing Body shall have submitted the applicable urban renewal plan to the City Planning Commission, for review and recommendations as to its conformity with PlanCheyenne, which is the general plan for the development of the City of Cheyenne; and

WHEREAS, on May 16, 2022, the City Planning Commission: (i) reviewed the 15th Street Corridor Urban Renewal Plan for the 15th Street Corridor Urban Renewal Project, (ii) found the 15th Street Corridor Urban Renewal Plan to be in conformity with PlanCheyenne, and (iii) recommended that the Governing Body adopt the 15th Street Corridor Urban Renewal Plan for the 15th Street Corridor Urban Renewal Project in the form presented to the Planning Commission; and

WHEREAS, the Governing Body held a public hearing on the 15th Street Corridor Urban Renewal Plan and Project in accordance with Wyoming Statute § 15-9-109(a); and

WHEREAS, on May 9, 2022, notice of the public hearing required by Wyoming Statute § 15-9-109(a) was mailed to all property owners; and

WHEREAS, on May 16, 2022, notice of the public hearing was mailed to all affected taxing agencies; and

WHEREAS, the Governing Body has reviewed the 15th Street Corridor Urban Renewal Plan and the 15th Street Corridor Urban Renewal Project, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) The 15th Street Corridor Urban Renewal Plan conforms to PlanCheyenne, and is consistent with definite local objectives respecting infill opportunities, locations for future revitalization, downtown revitalization and mix of uses, infill and revitalization incentives, and building reuse; and
- (ii) The 15th Street Corridor Urban Renewal Plan is sufficiently complete to indicate land acquisition, demolition and removal of structures, redevelopment, improvements, and rehabilitation as may be proposed to be carried out in the urban renewal area, zoning and planning changes, if any, land used, maximum densities and building requirements; and

WHEREAS, the Governing Body has reviewed the 15th Street Corridor Urban Renewal Plan and the 15th Street Corridor Urban Renewal Project, and, for the reasons set forth in such plan is able to make, and hereby makes, the following findings:

- (i) Because the 15th Street Corridor Urban Renewal Plan and project area boundaries do not propose relocating any residential properties, there is no need to designate a method for relocation of families displaced from the urban renewal area;
- (ii) The 15th Street Corridor Urban Renewal Plan conforms to PlanCheyenne as a whole;
- (iii) The 15th Street Corridor Urban Renewal Plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the 15th Street Corridor Urban Renewal Plan;
- (iv) The 15th Street Corridor Urban Renewal Plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise; and

WHEREAS approval of the 15th Street Corridor Urban Renewal Plan and Project authorizes division of property taxes pursuant to Wyo. Stat. § 15-9-120 for the following properties:

- (i) All of Blocks 412, 413, 414, of Original City, Cheyenne, Wyoming,
- (ii) Lots 12-22, Block 415 Original City, Cheyenne, Wyoming,
- (iii) Lots 12-22, Block 416, Original City, Cheyenne, Wyoming,

(iv) Lots 12-22, Block 417, Original City, Cheyenne, Wyoming, and

(v) Lot 1, Block 1, Depot Center Addition, Cheyenne, Wyoming; and

WHEREAS, division of property taxes shall be collected and deposited into a newly created 15th Street Corridor Urban Renewal Authority Special Revenue Fund and segregated for the purpose of the Urban Renewal Authority;

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body of the City of Cheyenne, Wyoming, hereby approves the 15th Street Corridor Urban Renewal Plan and 15th Street Corridor Urban Renewal Project and the creation of a new 15th Street Corridor Urban Renewal Authority Special Revenue Fund.

PRESENTED, READ, AND ADOPTED this ____ day of _____, 2022.

Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

MAY 16, 2022

STAFF REPORT

- REQUEST:** Review of and recommendation to the Governing Body of the 15th Street Corridor Urban Renewal Plan and Project
- CASE NUMBER:** URA-22-00001, the 15th Street Corridor Urban Renewal Plan and Project Amendment
- PREPARED BY:** Mark Christensen, AICP, Planner II



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the 15th Street Corridor Urban Renewal Plan and Project, as recommended by the Urban Renewal Authority, noting the request meets the review criteria of Wyo. Stat. § 15-9-110.

BACKGROUND:

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

This plan serves to establish the 15th Street Corridor Urban Renewal Plan and Project for the City of Cheyenne. The Governing Body adopted a Resolution on May 5th, 2022 declaring the area as blight pursuant to § 15-9-107, thus making the Corridor eligible for an Urban Renewal Plan and Project. The 15th Street Corridor Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing, the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. The 15th Street Corridor Urban Renewal Plan will be referred to the Urban Renewal Authority and City Planning Commission for recommendations. The plan and recommendations will be introduced before the Governing Body for final consideration through Resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The 15th Street Corridor redevelopment is proposed to include commercial, residential, and office uses; or any mix of uses proposed by the development community. The plan had been created in anticipation of several development opportunities in the area; including the proposed 15th Street Rail Experience by Visit Cheyenne and the City, Get Bent LLC's recent liquor license, Ace's Range, the redevelopment of 1509 Bent Avenue, proposed development at 1505 Carey Avenue, and the recent acquisition of 400 W. 15th Street. While the exact redevelopment is yet to be determined, the City of Cheyenne will utilize its Urban Renewal powers to aid the redevelopment with the remediation of environmental contaminants, building rehabilitation, targeted building demolition, and upgrades to necessary public improvements. The City plans to use tax increment financing (TIF), enabled by Wyo. Stat. § 15-9-120, to aid in the completion of these objectives. The use of these Urban Renewal powers and adoption of the plan will permit the redevelopment of the 15th Street Corridor through a robust public/private partnership and permit the utilization of Urban Renewal tools.

REVIEW CRITERIA:

The Planning Commission's role in adoption of the Urban Renewal Plan and Project is to review and provide a recommendation to the Governing Body as to whether or not to approve per Wyo. Stat. § 15-9-108. The specific review criteria is listed in Wyo. Stat. § 15-9-110 and is summarized in the attached 15th Street Corridor Urban Renewal Plan and Project document.

CONCLUSION:

Staff concludes that this Urban Renewal Plan and Project meets the applicable review criteria which is outlined in the attached Urban Renewal Plan and Project document.

STAFF RECOMMENDATION:

Staff recommends the Planning Commission recommend **approval** of the 15th Street Corridor Urban Renewal Plan and Project, noting the request meets the review criteria of Wyo. Stat. § 15-9-110.

URBAN RENEWAL AUTHORITY RECOMMENDATION:

The Urban Renewal Authority recommend **approval** of the 15th Street Corridor Urban Renewal Plan and Project as presented by staff, noting the Plan and Project conforms with Wyo. Stat. § 15-9-110, and authorized submission to the Planning Commission for review and recommendation to the Governing Body.

ATTACHMENT:

A. The 15th Street Corridor Urban Renewal Plan and Project



15th Street Corridor Urban Renewal Plan

City of Cheyenne

Urban Renewal Plan and Project



Produced Spring 2022
Planning and Development Department

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Introduction

The City of Cheyenne adopted Ordinance No. 4381 and Resolution No. 6156 on June 28, 2021 authorizing the creation and use of powers for the Urban Renewal Authority. This action fulfilled the requirements in Wyo. Stat. § 15-9-106, § 15-9-107, § 15-9-133, and § 15-9-134 as the Governing Body adopted a resolution declaring one or more slum or blighted areas in the community and that the redevelopment of such areas are necessary for the health, safety, morals or welfare of the community; and the Governing Body delegated the authorities of Urban Renewal to the Cheyenne Urban Renewal Authority. By completing the previous actions and pursuant to Wyo. Stat. § 15-9-106, the City of Cheyenne has completed the prerequisites to exercise the authority conferred by the Wyoming Urban Renewal Code.

This plan serves to establish the 15th Street Corridor Urban Renewal Plan and Project for the City of Cheyenne. The 15th Street Corridor Urban Renewal Plan will overview the urban renewal boundaries of the project area, the conditions of blight identified in the project area, all authorized urban renewal activities, the project financing, the terms of the plan, the conformance of the urban renewal project with adopted City of Cheyenne plans, the conformance of the project with Wyo. Stat. § 15-9-110, and the procedures to amend the plan. The 15th Street Corridor Urban Renewal Plan will be referred to the Urban Renewal Authority and City Planning Commission for recommendations. The plan and recommendations will be introduced before the Governing Body for final consideration through Resolution. The creation of the plan and adoption thereof serves to enable and fulfill Wyo. Stat. § 15-9-107 through § 15-9-111, § 15-9-113, § 15-9-115 through § 15-9-116, and § 15-9-119 through § 15-9-132.

The 15th Street Corridor redevelopment is proposed to include commercial, residential, and office uses; or any mix of uses proposed by the development community. The plan had been created in anticipation of several development opportunities in the area; including the proposed 15th Street Rail Experience by Visit Cheyenne and the City, Get Bent LLC's recent liquor license, Ace's Range, the redevelopment of 1509 Bent Avenue, proposed development at 1505 Carey Avenue, and the recent acquisition of 400 W. 15th Street. While the exact redevelopment is yet to be determined, the City of Cheyenne will utilize its Urban Renewal powers to aid in the redevelopment of the corridor with the remediation of environmental contaminants, building rehabilitation, targeted building demolition, and upgrades to necessary public improvements. The City plans to use tax increment financing (TIF), enabled by Wyo. Stat. § 15-9-120, to aid in the completion of these objectives. The use of these Urban Renewal powers and adoption of the plan will permit the redevelopment of the 15th Street Corridor through a robust public/private partnership and permit the utilization of Urban Renewal tools.

Urban Renewal Boundaries

The 15th Street Corridor Urban Renewal Plan encompasses an area roughly bound by Reed Avenue to the west, Capitol Avenue to the east, W. Lincolnway to the north from Reed Avenue to Thomes Avenue, the dedicated alley between W. Lincolnway and W. 15th Street to the north from Thomes Avenue to Capitol Avenue, and the Union Pacific right-of-way between Capitol Avenue and Reed Avenue excluding the Historic Cheyenne Depot. The map of the Urban Renewal Area can be found below.

The legal description for the project area includes:

- All of Blocks 412, 413, 414, of Original City, Cheyenne, Wyoming
- Lots 12-22, Block 415 Original City, Cheyenne, Wyoming
- Lots 12-22, Block 416, Original City, Cheyenne, Wyoming
- Lots 12-22, Block 417, Original City, Cheyenne, Wyoming
- Lot 1, Block 1, Depot Center Addition, Cheyenne, Wyoming
- All public rights-of-way adjacent to the lots and blocks referenced herein.



Conditions Survey

The 15th Street Corridor study area is shown in Figure 2. It is important to note that the components from the plan area that are included in Block 412 were included in the Blight Study adopted on June 28, 2021 and are thus already eligible for an Urban Renewal Plan (Figure 3). The expanded study area includes the area from Bent Avenue to Thomes Avenue between Lincolnway and W. 15th Street, and then from Thomes Avenue to Capitol Avenue between the alley and W. 15th Street and was adopted by the Governing Body on May 9, 2022, making the area eligible for an Urban Renewal Plan and Project pursuant to Wyo. Stat. § 15-9-107. The site contained six (6) of the nine (9) conditions of blight identified on the survey, demonstrating an area of blight in the community.

1. Deteriorated or Deteriorating Structures

The 15th Street study area contains several examples of deteriorated or deteriorating structures, as shown in the photo on the following page. The study area exhibited several vacant historic buildings. The longer these buildings remain vacant, the more they will continue to deteriorate.

2. Unsanitary or Unsafe Conditions

The 15th Street Corridor study area maintains unsanitary and unsafe conditions due to the proximity to the railroad. Environmental studies often yield the proximity to the railroad as possible evidence of environmental contamination. Additionally, the fact that the railroad is not fenced off could lead to unsafe conditions. The age of buildings in the area may indicate environmental contamination, namely asbestos and lead based paints.

3. Deterioration of Site or Other Improvements

Staff noted several conditions of deterioration of site improvements in the 15th Street Corridor study area. The deterioration included curb (Figure

2), gutter, sidewalk, and other improvements. The deterioration of site conditions is illustrative of blight in the study area.

4. Diversity of Ownership

The study area, like much of the downtown area, was platted under the Original City Plat of 1867. As the downtown grew and developed, many lots were sold off by dividing Original City lots through informal subdivision practices. The image in Figure 2 shows this as many of the irregular lots remain and have a large array of different owners. An Urban Renewal Plan could look to solidify existing ownership through a platting process under the Wyoming Urban Renewal Code.

5. Other - Poor Platting

Closely related to the Diversity of Ownership criteria is a note by staff of the poor platting of the area. Again, the entirety of the study area falls under the Original City Plat of 1867, making deciphering lot lines, easements, and other plat characteristics difficult for staff. Furthermore, the railroad properties are not platted, leading to difficulties in telling the characteristics of the railroad property. The age and condition of the plat (Figure 2) shows this condition of blight.

6. The Existence of Conditions which Endanger Life or Property by Fire and Other Causes

The two main indicators of the site that meet these conditions include the age of the buildings yielding possible environmental contamination and the proximity to the railroad. In addition to these indicators, the autocentric nature of W. Lincolnway with minimal crossings endangers pedestrian safety.

Figure 2: 15th Street Corridor Blight Study Area

 *Study Area Boundaries*

1. Deteriorated or Deteriorating Structures



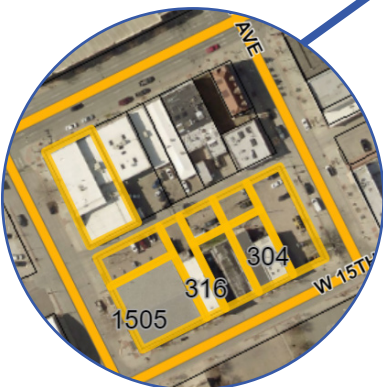
2. Unsanitary or Unsafe Conditions



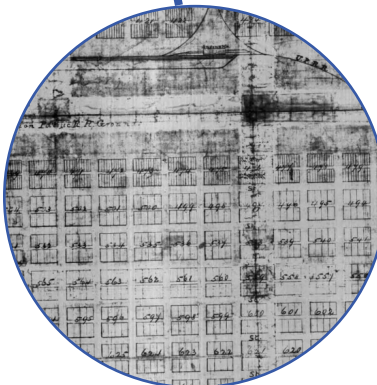
3. Deterioration of Site or Other Improvements



4. Diversity of Ownership



5. Other - Poor Platting



6. The Existence of Conditions which Endanger Life or Property by Fire and other causes



Figure 3: Reed Avenue Rail Corridor Study Area (June 28,2021 Blight Study



Authorized Urban Renewal Activities

The conditions identified in the plan and project area yield that the property is in need of rehabilitation and that such redevelopment is in the best interest of the public health, safety, morals and welfare of the community. The City of Cheyenne will use the Urban Renewal powers authorized in Wyo. Stat. § 15-9-113 to:

- Improve streets; including curb, gutter, and sidewalks;
- relocate utilities as necessary;
- restore and improve historic structures that have fallen into disrepair;
- facilitate economic development and site beautification; and
- make targeted efforts to demolish structurally unsound buildings.

Upon passage of the Resolution adopting the 15th Street Corridor Urban Renewal Plan and Project area, all authorized Urban Renewal activities will be eligible for tax increment financing (TIF) assistance.

Tax Increment Financing Wyo. Stat. § 15-9-120

Pursuant to Wyo. Stat. § 15-9-120, the 15th Street Urban Renewal Plan authorizes the use of tax increment financing for the Urban Renewal Project Area as identified in the Urban Renewal Boundaries. Upon passage of the Resolution for this Urban Renewal Plan taxes levied upon taxable property in:

- All of Blocks 412, 413, 414, of Original City, Cheyenne, Wyoming,
- Lots 12-22, Block 415 Original City, Cheyenne, Wyoming,
- Lots 12-22, Block 416, Original City, Cheyenne, Wyoming,
- Lots 12-22, Block 417, Original City, Cheyenne, Wyoming, and
- Lot 1, Block 1, Depot Center Addition, Cheyenne, Wyoming

shall be divided as follows:

- a. That portion of the taxes which would be produced by the rate upon which the tax is levied each year by or for each of the taxing agencies upon the total sum of the assessed value of the taxable property in the urban renewal project as shown upon the assessment roll used in connection with the taxation of the property by the taxing agency, last equalized prior to the effective date of the urban renewal project shall be allocated to and, when collected, paid into the funds of the respective taxing agencies as taxes by or for those taxing agencies on all other property are paid; and
- b. That portion of the levied taxes each year in excess of the amount specified in paragraph (a) of this section shall be allocated to and, when collected, paid into a special fund of the City of Cheyenne to pay the principal and interest on loaned money advanced to, or any indebtedness (whether funded, refunded, assessed, or otherwise) incurred by the City or the Urban Renewal Authority, unless the total assessed valuation of the taxable property for the aforementioned properties exceeds the total assessed value of the taxable property in the project as shown by the last equalized assessment roll referred to in paragraph (a) of this section, all of the taxes levied and collected upon the taxable property in the urban renewal project shall be paid into the funds of the respective taxing agencies. When any loans, advances and indebtedness, if any, and interest have been paid in full, all monies thereafter received from taxes upon the taxable property in the urban renewal project shall be paid into the funds of the various taxing agencies as taxes on all other property are paid.

The tax increment will be used to fulfill the purposes of Wyo. Stat. § 15-9-121, which reads:

In any urban renewal plan or in proceedings for the advance of monies or making of loans

or the incurring of any indebtedness by the municipality or agency to finance or refinance in whole or in part the urban renewal project, the portion of the taxes specified in W.S. 15-9-120(a)(ii) may be irrevocably pledged for the payment of the principal of and interest on those loans or advances or that indebtedness.

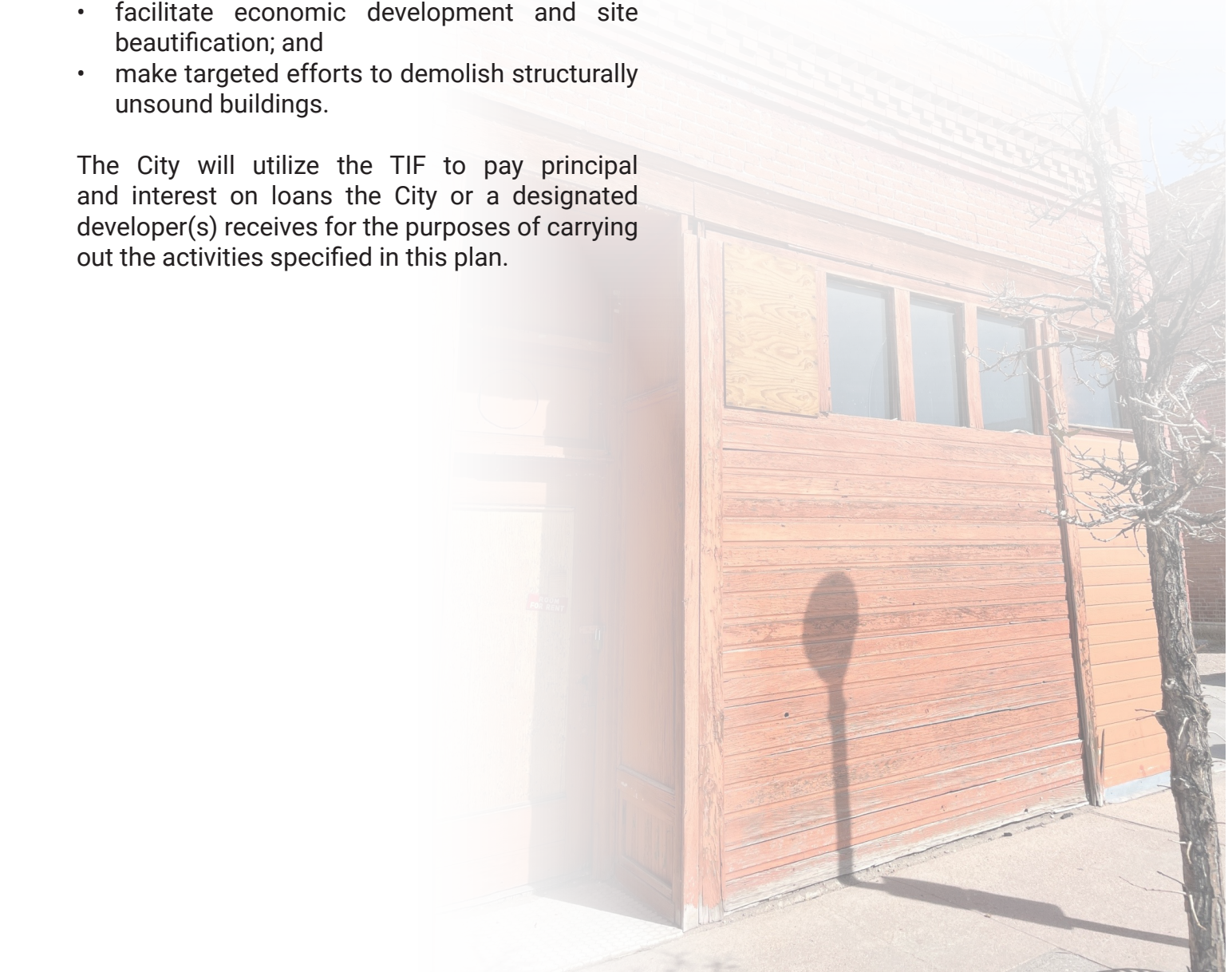
Again, the tax increment financing will be used to aide in the completion of the Urban Renewal activities specified in this plan; which include;

- Improve streets; including curb, gutter, and sidewalks;
- relocate utilities as necessary;
- restore and improve historic structures that have fallen into disrepair;
- facilitate economic development and site beautification; and
- make targeted efforts to demolish structurally unsound buildings.

The City will utilize the TIF to pay principal and interest on loans the City or a designated developer(s) receives for the purposes of carrying out the activities specified in this plan.

Plan Financing

As mentioned in the previous section, the 15th Street Corridor Urban Renewal Plan and Project will utilize tax increment financing. The base of all the properties included in the plan boundaries is \$85,912.05. Like other Urban Renewal Plans and Project in the City of Cheyenne each project will be required to perform individually, meaning the project will only be able to collect TIF from the increment it creates. Due to development uncertainties and the number of properties in the project area, the Planning and Development Department has not projected the TIF as was done in previous Urban Renewal Plans. Rather, staff will project individual projects as they submit tax increment financing applications.



Conformance with the Comprehensive Plan

The 15th Street Corridor Urban Renewal Plan and Project complies with PlanCheyenne very similarly to the Hynds and the Hole Urban Renewal Plan. This is due to the fact that they both offer incentives via the tax increment financing, allow for the revitalization of Historic properties, and contain infill development. Like the Hynds and the Hole Plan, the 15th Street Corridor Plan helps achieve PlanCheyenne Foundation 5 - Celebrating our Character and Varied Heritages. This foundation states, "As Cheyenne grows, we will celebrate and enhance our character and heritage by focusing on preserving our historic areas and Downtown." Several buildings in the plan area are historic buildings in the Downtown District. The activities authorized under the Urban Renewal Plan will ensure the Historic atmosphere is preserved while catalyzing new development opportunities along the corridor.

Complementary to furthering Foundation 5, the Urban Renewal Plan and Project also reinforces the same Principles and Policies in PlanCheyenne as the Hynds and the Hole Plan:

- *Policy 1.4.A: Infill Opportunities*
- *Policy 1.4.B: Locations for Future Revitalization*
- *Policy 1.4.C: Downtown Revitalization and Mix of Uses*
- *Policy 1.4.D: Infill and Revitalization Incentives*
- *Policy 1.5.A: Building Reuse*

The policies above show that the Urban Renewal Plan addresses Principle 1.4. These policies and Principles represent an instance in which the Urban Renewal Plan is in conformance with the comprehensive plan. PlanCheyenne contains several more policies and principles in which the Urban Renewal Plan and Project conform to. Through revitalization, building reuse, infill development, and Historic Preservation, this Urban Renewal Plan furthers the intent and objectives of PlanCheyenne, much like the Hynds and the Hole Urban Renewal Plan.



Conformance with Wyo. Stat. §15-9-110

In order for an Urban Renewal Plan and Project to be approved the Governing Body must find that the plan meets the review criteria found in Wyo. Stat. § 15-9-110(a) and (b). Due to the fact that the 15th Street Corridor Urban Renewal Plan does not consist of the acquisition of open space to be acquired by the municipality, the plan will not address the findings of Wyo. Stat. § 15-9-110(b). Pursuant to Wyo. Stat. § 15-9-110(a), the plan achieves the following requirements:

(i) A feasible method exists for the relocation of families who will be displaced from the urban renewal area in decent, safe and sanitary dwelling accommodations within their means and without undue hardship to those families;

The plan and project area boundaries do not encompass any residential properties; therefore, there is no need to designate a method for relocation of families displaced from the urban renewal area.

(ii) The urban renewal plan conforms to the general plan of the municipality as a whole;

PlanCheyenne is the Comprehensive Plan for the City of Cheyenne. As discussed in the previous section, the 15th Street Urban Renewal Plan conforms to PlanCheyenne.

(iii) The urban renewal plan gives due consideration to the provision of adequate park and recreational areas and facilities that may be desirable for neighborhood improvement, with special consideration for the health, safety and welfare of children residing in the general vicinity of the site covered by the plan;

The 15th Street Corridor gives due consideration to the provision of adequate parks and recreation areas as the corridor is planned to contain Greenway connections to the larger Cheyenne Parks and Recreation system.

(iv) The urban renewal plan affords maximum opportunity, consistent with the municipality's needs, for the rehabilitation or redevelopment of the urban renewal area by private enterprise.

The 15th Street Corridor Urban Renewal Plan affords the maximum opportunity for redevelopment by private enterprise. The City of Cheyenne is planning on working with Visit Cheyenne to complete the 15th Street Rail Experience, will likely look to complete Greenway connections in the area, and may look to create more opportunities for public parking, all of which may receive funding from the TIF; yet, the remainder of the TIF is presumed to be utilized by private enterprise

Plan Term

The Term of the 15th Street Corridor Urban Renewal Plan is 25 years from the approval of the Resolution by the Governing Body. The Plan shall be effective pursuant to Wyo. Stat. § 15-9-111(b). If the Governing Body deems that all projects have been accomplished and all debts incurred to finance those projects and all expenses of the Authority have been repaid, the Governing Body may declare this Plan fully implemented and the total tax collections derived from this Plan Area shall be paid into the funds of the appropriate taxing entity.

Amendment Procedures

This plan shall be amended pursuant to Wyo. Stat. § 15-9-111(a). All modifications to this Plan will be referred from the Urban Renewal Authority Board to the City of Cheyenne Governing Body and shall be approved by Resolution.

